



DECISION

Complaint No. : POS/955/KE/41/2022

Name and Address of the Complainant : Syed Saqlain Raza Naqvi, Rtd. LDC R/o. R-4, Shumail Homes, Jaffar-e-Tayyar Society, Opp. Shabana Cinema, Malir, Karachi.

Name of the Agency Complained against : Accountant General Sindh

Name & Designation of Investigation Officer : Syed Farrukh Habib
Director, Regional Office, Karachi (East)

Subject :- **COMPLAINT AGAINST PAYMENT OF PENSIONARY BENEFITS OF BS-07 INSTEAD OF BS-11 AS PER RETIREMENT ORDER DATED 10.12.2020.**

THE COMPLAINT

Syed Saqlain Raza Naqvi, r/o R-4, Shumail Homes, Jaffar-e-Tayyar Society, Malir, Karachi, in his complaint dated 16.02.2022, stated that he retired as LDC (BS-11) from the Education & Literacy Department, Government of Sindh, on 30.12.2020. He alleged that the Accountant General, Sindh (AG Sindh) released his pension from 18.11.2017 calculated on BS-7 instead of BS-11. The complainant also alleged non-payment of the commuted value of pension and leave encashment. He stated that despite efforts he failed to get any response from AG Sindh. He therefore, solicited intervention of this office in the matter.

PROCEEDINGS

2. After admission of the complaint by condoning delay under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (as amended up to date), and after receiving the mandatory Affidavit on Form "A" along with other relevant documents, report was called from the Agency. In response AG Sindh, vide report dated 25.07.2022, stated that pension was calculated correctly on last pay drawn (BS-7), as no claim for BPS-11 salary increment had been submitted by the Drawing and Disbursing Officer (DDO). AG Sindh further indicated that revision could be made after drawal of BPS-11 salary by the complainant through the DDO.
3. The District Education Officer, Korangi, submitted comments that the complainant had been absent from duty since 2003 and had filed Constitutional Petition No. D-6338 of 2017. The Department had submitted pension records and complied with the High Court orders. The DDO had not submitted any claim for promotion before retirement.
4. Review of the High Court of Sindh orders revealed that Constitutional Petition No. D-6338/2017 filed by the complainant had been disposed of on 17.12.2020 following submission of the compliance report by the District Education Officer. The High Court noted that the retirement order had been issued and pension paid, and the complainant expressed satisfaction.

Contd....

FINDINGS

5. I have examined the case file and perused correspondence and reports etc., observed that:

- i. The complainant retired as LDC (BS-11) on 30.12.2020.
- ii. AG Sindh disbursed pension on last pay drawn (BS-7) citing procedural issues and non-submission of salary claim by the DDO before retirement.
- iii. Constitutional Petition No. D-6338/2017 was adjudicated by the Hon'ble High Court of Sindh, which directed payment of retirement benefits. Compliance and disposal order dated 17.12.2020 confirm that pension was released to the complainant.
- iv. No procedural lapses by AG Sindh or Education Department are observed beyond submission of salary claim by DDO, which is outside jurisdiction of this office.
- v. The grievance regarding differential pension has already been addressed by the Hon'ble High Court and the complainant expressed satisfaction at that stage.

DECISION

6. In view of the above, the complaint is dismissed as the matter has been lawfully adjudicated and disposed of by the Hon'ble High Court of Sindh. The jurisdiction of this Institution does not extend to matters already decided by a competent court.

Given under my hand and seal of the office



Sd /-

(Muhammad Sohail Rajput)
Sitara-e-Imtiaz. PAS
Ombudsman Sindh

Karachi, dated .05.12, 2025